BUPPE KIHWAJA CHANGARA
and
KENI CLEMENT MUTOMBO
versus
THE MINISTER OF MINES &
MINING DEVELOPMENT
and
THE PROVINCIAL MINING DIRECTOR,
MASHONALAND CENTRAL PROVINCE and
MONTEY MURINDAGOMO
and
THE MINISTER OF ENVIRONMENT CLIMATE
AND WILDLIFE
and
ENVIRONMENTAL MANAGEMENT AGENCY and
THE MINING COMMISSIONER

HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE; 10 March & 27 April 2026

Court Application

C Makura, for the applicant
R Mashingaidze, for the 1st and 2nd respondents
I Chikaka, for the 3rd respondent

MANZUNZU J

INTRODUCTION

(1) This is an application for a *declaratur* made in terms of section 14 of the High Court Act [*Chapter 7:06*]. The relief sought is expressed as follows:

1. "That special grant 6290 issued by the secretary for mines and mining development on 21st October 2024 to the 3rd respondent, be and is hereby set aside and declared null and void.
2. that in the event 3rd respondent again submits an application for a special grant over subdivision

1 of w of the great riverside in Mazowe district of Mashonaland central province and subdivision 5 of the Sommerset in Mazowe district of Mashonaland central province or any part of it, before granting the application and issuing a special grant, first respondent is hereby ordered to-

i) submit a copy thereof to applicants ii) permit applicant the right to respond to such application

iii) consider and take into account in his deliberations, the response of the applicants to the application.

3. that in the event that 3rd respondent decides to pursue an application for a special grant, 3rd respondent be and is hereby ordered to apply for a certificate under the provisions of section 97 of the environmental management act [chapter 20:27] before commencing any operations.
4. that 3rd respondent be and is hereby ordered to pay the costs of suit on the attorney and client basis should he oppose this application."

(2) the 3rd respondent is the only one who opposed the application."

BACKGROUND

(3) The applicants are both adults with full legal capacity to sue and be sued and so is the third respondent.

(4) The first respondent is the Minister of Mines and Mining Development, cited in his or her official capacity.

(5) The second respondent is the Provincial Mining Director cited in his or her official capacity. (6) The fourth respondent is the Minister of Environment, Climate and Wildlife cited in his or her official capacity.

(7) The fifth respondent is the Environmental Management Agency, a private entity.

(8) The sixth respondent is the Mining Commissioner cited in his or her official capacity.

(9) The applicants are beneficiaries of the land reform and resettlement programme. The first applicant was given land holding under Model A2 Phase II on Subdivision 1 of The Great Riversdale in Mazowe District of Mashonaland sometime in May 2021. The second applicant was also offered land holding under Model A2 Phase II on subdivision 5 of the Sommerset in

Mazowe District of Mashonaland Central Province on 21 July 2003.

(10) The third respondent was issued a special grant to mine gold on the farms.

(11) The applicants allege that from 2024 until now, the third respondent exercising his rights under the special grant has been interfering with the applicants' farming activities. The third respondent is allegedly assaulting and blocking employees from having access to their crops and that the third respondent has been causing damage to the farm by cutting down trees, opening roads on the farms, digging trenches and leaving uncovered shafts.

(12) The applicants allege that the mining activities are being conducted without an Environmental Impact Assessment Certificate (EIA) in terms of section 97 of the Environmental Management Act [*Chapter 20:27*].

(13) In October 2018, the first and fifth respondents ordered the third respondent to stop interfering with the applicant's farming activities when the applicants had raised a complaint. The applicants allege that to date the third respondent has not complied with this order.

(14) The applicants then filed an urgent chamber application for an interdict under case number HCH312/25. A provisional order was granted barring the 3rd respondent, his agents, employees or anyone under his instruction from interfering with the applicant's farming activities Tand for the third respondent not to conduct activities without a valid Environmental Impact Assessment Certificate.

(15) The applicants now seek a *declaratur* in terms of section 14 of the High Court Act [*Chapter 7:06*].

(16) The third respondent raises five preliminary points which will be discussed below.

SUBMISSIONS BY PARTIES

(17) The third respondent said that the applicants have approached this court with dirty hands. He alleged that the applicants have not disclosed that they also hold mining blocks in

the same area and have been conducting mining operations without the required Environmental Impact

Assessment Certificate. The third respondent allege that in HCH8403/23 and HCH 4784/24 both cases withdrawn by the applicants did not provide the required EIA certificate. He stated that the applicants are misleading the court by presenting themselves as aggrieved farmers.

(18) The applicants allege that the dirty hands principle is not applicable in this instance because the principle relates to a failure to obey a previous order of the court.

(19) The third respondent also alleges that the matter is *lis pendens* I that the relief sought by the first applicant in R-HCH 312/25 is the same relief that is being sought in the present application. The third respondent alleges that R-HCH 312/25 is a matter that involves the same parties, the same facts and it raises the same issues. The third respondent argues that a party cannot bring two matters seeking the same in parallel.

(20) The applicants allege that the matter under R-HCH312/25 is an urgent court application for an interdict which was heard to finality. They also state that the causes of action and reliefs sought are different, therefore the *lis alibi pendens* does not apply.

(21) The third respondent states that there are material disputes of fact. He alleges that the allegations brought by the applicant cannot be resolved without the benefit of oral evidence. He states that the court should not accept an affidavit by the applicants alone.

(22) In response the applicants argue that the mere allegation of a possible dispute of fact is not conclusive of its existence. The applicants state that it is not correct in the circumstances for the 3rd respondent to allege that there is a material dispute of fact, because the pleadings must show the existence of a *bona fide* dispute of fact which is not capable of being resolved on the papers. They allege that the pleadings are clear on the relief that is sought by the applicants, they do not reflect that there is a material dispute of fact.

(23) Another preliminary point raised by the third respondent is that the relief sought is incompetent. He alleges that the draft order is incurably defective because the applicants cannot seek an order that compels the third respondent to furnish them with copies of any future application he makes for a special grant as if they are an administrative authority. It is argued that an application for a special grant is governed by the Mines and Minerals Act [*Chapter 21:05*] and private parties do not need to be consulted or to take part in the processing of the application. It is only the courts which can interfere when it's shown that the process was done unlawfully.

(24) The applicants argue that they are owners of the farms and have interests on what happens within the land. They also state that they have plans to use the land and want to ensure the land is protected from any activities that will negatively impact its operations. Further, they also have plans to use the land in future and thus the relief sought is competent in terms of section 14 of the High Court Act.

(25) The third respondent alleges that this application has been overtaken by events in that he now has the valid EIA certificate which was renewed in 2026. The third respondent alleges that in terms of section 100 (1) of the Environmental Management Act, he was deemed to have an EIA certificate. The third respondent argued that he made an application on 15 November 2023 and in terms of s 100 of the EMA he submitted an Environmental Impact Assessment report detailing the project. The Director General which is the fifth respondent had sixty days to consider the application. The sixty-day lapsed on 14 January 2024. The Director General failed to act within the stipulated time hence the project was deemed to have been approved by operation of law.

(26) The applicants refute this position that the application has been overtaken by events. They maintain that the respondents do not have the required EIA certificate and their special grant should be set aside by the court.

THE LAW

1. WHETHER OR NOT THE APPLICANTS APPROACH THE COURT WITH DIRTY HANDS

(27) In *Richclover (Pvt) Ltd* v *Rambayi & Anor; and Rambayi* v *Royal Home Furniture* HH 269/24 the court explained the dirty hands principle. The court said:

> "The dirty hands principle simply means when a litigant appears before a court, he/she/it mustn't do so when their hands are unclean. The rationale for the principle is the preservation of the integrity of the court itself. The court is an institution which must detest aiding and lending assistance to people who look at it contemptuously. If it does, it lowers itself to the same level as such litigants. In explaining dirty hands, I can do no better than restate the remarks of this court in the case *of Deputy Sheriff, Harare v Mahleza & Anor* 1997 (2) ZLR 425(H) where it said:
> "People are not allowed to come to court seeking the court's assistance if they are guilty of a lack of probity or honesty in respect of the circumstances which cause them to seek relief from the court. It is called, in time-honoured legal parlance, the need to have clean hands. It is a basic principle that litigants should come to court without dirty hands. If a litigant with unclean hands is allowed to seek a court's assistance, then the court risks compromising its integrity and becoming a party to underhand transactions."
> That failure to obey a previous order of the court constitutes dirty hands is an open secret…"

(28) The court in *Econet Wireless (Private) Limited* v *The Minister of Public Service Labour and Social Welfare and Others* SC 31-16 emphasised that parties ought to comply with the laws of the land and cannot approach the court with dirty hands. It stated that:

> "While s 69(3) of the Constitution guarantees the appellant's right to access the courts, it is no licence for it to approach the courts with hands dripping with dirt. The appellant is not being denied access to the courts. What it is being asked to do is to cleanse itself by obeying the prevailing laws of the land before approaching the courts.
> By the same token, while under s 71 of the Constitution, the appellant has the right to protect its property through the courts, there is a corresponding obligation to do so with clean hands. For the foregoing reasons we found as a matter of fact and law, no merit in the appellant's complaint that it had been denied its constitutional right of access to the courts and protection of its private property.

> The learned judge in the court a quo did not fall into error or misdirect herself in any way by denying the appellant access to the court until it had cleansed itself by complying with and obeying the prevailing laws of the land."

(29) The court in *Martin Nhapata* v *Christopher Maswi & Anor* SC 38/16 emphasized that a party cannot seek redress when they approach the court with dirty hands, that is when they haven't complied with an extant court order. The court stated that:

> "At the hearing before me, the respondents raised a point *in limine*, to the effect that the appellant should not be heard, since he was approaching the court with dirty hands. This was because, they allege, the applicant had failed, refused and/or neglected to comply with a lawful order of the court…..
> The applicant contends that the doctrine of dirty hands was inapplicable in this matter because there was no law which required him to comply with an order of the court before approaching the court for redress. The applicant contents that the doctrine of dirty hands was inapplicable in this matter because there was no law which required him to comply with an order of the court before approaching the court for redress. It hardly needs emphasizing that, even if one may not agree with a court order and as long as it is extant, and execution thereof has not been stayed, one is obliged to comply with it before seeking to pursue other legal remedies".

(30) Litigants are guaranteed the right to access the courts by the Constitution. The right is not absolute and is subject to limitations. A party cannot approach the courts and seek redress when they have not been obeying an order of court. A litigant should approach the court with clean hands. The third respondent has not shown how the applicants have approached this court with dirty hands. The applicants seek a declaratory order for land which they have been offered by the Ministry of Lands, Agriculture, Fisheries, Water and Rural Resettlement. The preliminary point raised by the third respondent that the applicants approach this court with dirty has no merit and is dismissed.

2. WHETHER OR NOT THE MATTER IS *LIS PENDENS*

(31) Herbstein and Van Wisen in the *Civil Practice of the High Courts and the Supreme Court of Appeal of South Africa*, 5th ed deal with the defence *of lis pendens* at p 605 thus:

> "*Lis pendens* is a special plea open to a defendant who contends that a suit between the same parties concerning a like thing and founded upon the same cause of action is pending in some other court…. it matters not, in my view that the matters have been brought by way of application and the other by way of action. It is not so much the vehicle by which the matters have been brought to court, but the nature of the issues and relief sought, that is the substance and the form"

In the 3rd edition at page 269, Herbstein and van Winsen in the *Civil Practice of the Superior Courts in South Africa* they state that:

> "If an action is already pending between parties and the plaintiff therein brings another action against the same defendant on the same cause of action and in respect of the same subject matter, whether in the same or a different court, it is open to such defendant to take the objection of *lis pendens*, that is, another action respecting the identical subject matter has already been instituted, where upon the court, in its discretion, may stay the second action pending the decision in the first action."

(32) This court in *Mliswa* v *Mutasa & Ors* HCHC85/24 reiterated the requirements for *lis pendens*, it states that:

> "Therefore, trite that for the defence of lis pendens to succeed the following requirements must be met:
> i. There must be another pending matter ii. Between the same parties iii. On the same cause of action
> iv. In respect of the same subject matter."

(33) The case in R- HCH312-25 was an urgent court application and the court handed down its order. R-HCH 312-25 was an application for an interdict. In the present matter the applicants seek a declaratory order. The third respondent fails to satisfy the requirements of *lis pendens* as stated by this honourable court, that; there is other pending matter, between the same parties, in respect of the same subject matter or cause of action. The preliminary point raised by the third respondent of *lis pendens* has no merit and is dismissed.

3. WHETHER OR NOT THERE IS A MATERIAL DISPUTE OF FACT

(34) The court in *Riozim (Pvt) Ltd* v *Falcon Resources (Pvt) Ltd & Anor* SC 28-22 explains instances where the court says there is a material dispute of fact. The court stated that:

> " In this regard, the mere allegation of a possible dispute of fact is not conclusive of its existence. From the decided cases, it is evident that a dispute of fact arises where the court is left in a state of reasonable doubt as to which course to take in resolving the matter without further evidence being led."

See also : *Supa Plant Investments (Pvt) Ltd v Edgar Chidavaenzi* HH 92/09

(35) The court in *Chiyangwa* v *Katerere & Ors* SC61-21 further noted that;

> "A material dispute of fact arises where a party denies material allegations made by the other and produces positive evidence to the contrary. Generally, in considering whether or not there is a material dispute of fact, the court is enjoined to adopt a robust common-sense approach to such defenses when raised by litigants…
> Where there is a material dispute of fact the court may dismiss the application, order oral evidence or refer the matter to trial with such orders as to pleadings as it sees fit."

(36) The third respondent in my view has not shown such dispute which cannot be resolved on paper. The alleged dispute of facts does not exist. There is no need for oral evidence to be led in the circumstances. The preliminary point alleging existence of material dispute of fact has no merit and is dismissed.

4. WHETHER OR NOT THE APPLICATION HAS BEEN OVERTAKEN BY EVENTS

(37) The principle of mootness is a legal doctrine holding that a court will not hear or decide a case if the underlying dispute has already been resolved or has lost its practical significance, rendering any judgment purely academic or ineffective.

(38) In *Ndewere* v *President of Zimbabwe NO & Ors* SC 57/22 it was stated that:

> "A matter is moot if the dispute becomes academic by reason of changed circumstances, thus making the jurisdiction of the court unsustainable."

(39) The issue was comprehensively dealt with the Constitutional Court in *Thokozani Khupe & Anor v Parliament of Zimbabwe & Ors* CCZ 20/19 at p 7 where it was held as follows:

> "A court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy. The position of the law is that if the dispute becomes academic by reason of changed circumstances, the court's jurisdiction ceases and the case becomes moot…The question of mootness is an important issue that the court must take into account when faced with a dispute between parties. It is incumbent upon the Court to determine whether an application before it still presents a live dispute as between the parties. The question of mootness of a dispute has featured repeatedly in this and other jurisdictions. The position of the law is that a court hearing a matter will not readily accept invitation to adjudicate on issues which are of such a nature that the decision sought will have no practical effect or result."'

The court in *MDC & Ors* v *Mashavira & Ors* SC 56/20 stated;

> "…a court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy between the parties … [1] the dispute becomes academic by reason of changed circumstances, the case becomes moot and the jurisdiction of the court is no longer sustainable."

(40) The third respondent has not shown that the matter has been overtaken by events. The third respondent has not shown that the Environmental Impact Assessment certificate was indeed renewed. Therefore, the preliminary point must fail.

5. WHETHER THE RELIF SOUGHT IS INCOMPETENT

Paragraph 2 of the draft order is the only one under attack as incompetent. Even if it were held to be as such, it will not pollute the entire relief as incompetent. In the event the court finds paragraph 2 to be incompetent, the court will not grant the same. The order which finally is granted is at the discretion of the court. The preliminary point which partially attacks the relief sought must fail.

DISPOSITION

The preliminary points raised by the third respondent be and are hereby dismissed with costs.

MANZUNZU J…….

Madzima Chidyahusiku Museta Legal, applicants' legal practitioners
Civil Division of the Attorney General, first and second respondent's legal practitioners
Mushoriwa Moyo, third respondent legal practitioners